

21SMCV01145 21SMCV01145

County: los-angeles

Division: Civil Law and Motion

Department: I

Hearing date: 2026-07-09

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This is a motion to compel by the defense. There are a host of others in the pipeline. Specifically, this one is to obtain responses to Geier's first set of special interrogatories and for sanctions. Geier states that discovery was propounded on March 29, 2026, but no responses were received. Geier's counsel sent a courtesy notice to plaintiff on June 16, 2026, calling this to plaintiff's attention, but when no immediate response was forthcoming, Geier filed the instant motion the next day. In opposition, plaintiff states that he has been working diligently on the discovery being sent by the defense team, of which this is but a single piece. That said, plaintiff states that he in fact sent responses on June 21, 2026, and has been trying to comply with discovery propounded in good faith. In reply, defendants agree that plaintiff did eventually serve responses (after the motion was filed) but note that the responses contained objections, which defendants state are improper because they are waived by the untimeliness. Further, as to many of the responses, plaintiff's answers were purportedly vague and evasive.

Defendant contends that the motion ought not be deemed moot because the responses have objections and are not complete. The court understands that argument, and to the extent that any information is being withheld based on an objection, generally the objection would be waived. However, the court believes that the parties ought to meet and confer on the subject. To aid the parties in that endeavor, the court will set out some of its initial (and not binding) thoughts.

As to items 2-4, the court agrees that the responses seem evasive. Defendants want details,

including the names of those with whom plaintiff dealt. A vague statement that there are witnesses but plaintiff cannot remember them all is not sufficient. (If plaintiff had named those he could recall but said there could be others that he could not recall, that would be different.) As to SI 1, plaintiff is concerned because it involves information about his daughter. Specifically, Geier wants to know where she lived and went to school. The theory is that plaintiff had physical custody of her, but if he was living with McCourt—as he has claimed—then presumably she did, too. If she was not living with McCourt, that would indicate that neither was plaintiff. While the court has ruled that cohabitation is not required for a Marvin contract, that does not make it irrelevant. Within reason, plaintiff needs to respond. But that said, to the extent that there is a legitimate privacy concern regarding the daughter's privacy, the court believes that the objection ought not be deemed waived, although it is likely best dealt with through the confidentiality order. Request 5 deals with the dates of the relationship between plaintiff and the woman that plaintiff eventually married. That is pertinent, Geier claims, because that relationship allegedly began in 2014 and overlaps the time plaintiff is alleging he was in an exclusive and committed relationship with McCourt. In other words, if he claims to have been in an exclusive and committed relationship with McCourt, that would be weakened by a showing that he was in a committed relationship with another woman (whom he eventually married). The court agrees that plaintiff must answer that as well, although the other person might have rights that the parties ought not trample. Again, the confidentiality order may be the best route. Further, while the court agrees that objections were waived by failing to file timely responses, the answers need not be given down to the molecular level. The trial is coming up, and the court cannot help but worry that the amount of discovery being propounded will force the court to continue the trial date—which the court very much does not want to do for this case (already about 5 years old!).

Accordingly, the court is inclined to do the following: the motion is DENIED AS MOOT except as to sanctions, but the objections (other than those discussed above) are waived. The sanctions sought are \$2400. That is hardly a massive sum. But even so, had defendant waited a short time after the letter or called plaintiff, the court suspects that responses would have been forthcoming. If those responses were inadequate, a meet

and confer might have solved the problem (as the court hopes it in fact will). But the court is not sure of that. It could be that all a meet and confer would have accomplished is to spend more time. Therefore, the court will hold the sanctions issue IN ABEYANCE. After this issue has been resolved, either by agreement or motion, defendant should file a notice to the court either informing the court that sanctions are resolved or requesting that it be restored to the calendar. For the parties' guidance, some sanctions will likely be awarded, but if in fact good answers are provided without the need for further court intervention, it would strengthen greatly an argument that communication would have resolved the issue so the sanctions should be relatively nominal. If good answers are not provided, then \$2400 would seem like a bargain.